

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 06/15/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: MSC21-00476 CASE NAME: FLEXSQUARE LLC VS EGHTEAD JURY TRIAL FILED BY: <u>*TENTATIVE RULING:*</u>
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Vacated.

Law & Motion

2. 9:00 AM CASE NUMBER: C22-02585
CASE NAME: ERIC RHEINHEIMER VS. SHANNA FARRELL
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: PAYMON HIFAI, ESQ.**
FILED BY: FARRELL, SHANNA
TENTATIVE RULING:

Clifford R. Horner, Paymon Hifai and Horner Law Group, P.C. (“Counsel”) filed a Motion to be Relieved as Counsel on April 13, 2026 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on August 31, 2026. That motion was advanced for hearing to June 15, 2026 by the Court’s Order issued May 26, 2026.

Background

Counsel seeks to be relieved as attorneys for defendant and cross-complainant Shanna M. Farrell (“Defendant”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship. See Declaration filed April 13, 2026, ¶12. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13 and Notice filed May 29, 2026.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

3. 9:00 AM CASE NUMBER: C23-01360
CASE NAME: LESLEE MARKHAM VS. MICHELLE TIERNAN
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: TIERNAN, MICHELLE
TENTATIVE RULING:

Before the Court is a motion to quash service of the summons and complaint and to set aside default and default judgment filed by defendant Michelle Tiernan. For the reasons set forth, the motion is **DENIED**.